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CHERYL COCHRAN-WILSON, CLERK
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IN THE CIRCUIT COURT OF UNION COUNTY, ARKANSAS
CIVIL DIVISION
6 DIVISION

MARILYN SUE GRUBBS, PERSONAL REPRESENTATIVE
OF THE ESTATE OF CHARLES DOUGLAS ADAMS, DECEASED

PLAINTIFF

VS.

CASE NO. 70CV-22-93

JEREMY C. BENNETT, MAKADA TRANSPORT, INC.
SOUTHERN UNITED TRANSPORTATION, LLC
AND MELVIN SAMPSON

DEFENDANTS

COMPLAINT

COMES NOW Marilyn Sue Grubbs, the duly appointed personal representative of the Estate of Charles Douglas Adams, deceased, and for her cause of action against Defendants, states:

1.

Plaintiff is the duly appointed and acting personal representative of the estate of Charles Douglas Adams pursuant to an Order entered by the Circuit Court of Union County, Arkansas, Probate Division, Second Division, on May 25, 2021, in case number 70PR-21-121.

2.

Charles Douglas Adams was a resident of Union County, Arkansas, when he was killed in an automobile wreck on April 29, 2021, on Highway 167 in Union County, Arkansas.

3.

Plaintiff brings this action against the Defendants for the wrongful death of Charles Douglas Adams on behalf of the decedent's estate and his statutory beneficiaries, including Plaintiff, Marilyn Sue Grubbs, his surviving sister, and Robert Allen Adams, his surviving brother.

4.

Jeremy C. Bennett ("Bennett") is a resident of the State of Mississippi, who was driving a semi-truck at the scene of the accident in which Charles Douglas Adams was killed on April 29, 2021.

5.

Defendant MAKADA Transport, Inc., ("MAKADA") is a Mississippi corporation involved in freight hauling and the operation of 18-wheel commercial trucks in interstate commerce, including in the State of Arkansas. On information and belief, Jeremy C. Bennett was driving the semi-truck involved in the accident as an employee or agent of MAKADA Transport, Inc.

6.

Defendant, Southern United Transportation, LLC, ("Southern United") is a Mississippi limited liability company owned by Jeremy C. Bennett engaged in freight hauling operation in interstate commerce, including in the State of Arkansas. On information and belief, Jeremy C. Bennett was driving the semi-truck involved in this accident as an employee or agent of Southern United Transportation, LLC.

7.

Defendant Melvin Sampson was driving a vehicle which collided with the vehicle of the decedent in the accident resulting in the decedent's death. The Arkansas State Police Accident Report notes that Mr. Sampson resided in the State of Louisiana, but was the owner of the vehicle bearing Arkansas tags and had an Arkansas driver's license.

8.

This court has jurisdiction of the parties and the subject matter, and venue properly lies in Union County, Arkansas.

9.

On April 29, 2021, Charles Douglas Adams was operating his 2009 Jeep Wrangler automobile in a southerly direction near the entranceway of the Union Power Station plant on Highway 167 in Union County, Arkansas, when a semi-truck being operated by Defendant Bennett suddenly and without warning backed from a dirt road onto the highway and into the immediate path of Mr. Adams' vehicle. As Mr. Adams braked to avoid the semi-truck, his vehicle was struck from the rear by a 2019 Nissan Rogue automobile driven by Defendant Melvin Sampson.

10.

Defendant Bennett was attempting to enter the Union Power Station plant at the time of the accident. He apparently missed the turn into the plant premises and, rather than proceeding to a safe turn area, recklessly pulled into dirt road at the top of the hill just past the plant entrance. In an attempt to turn the semi-truck around, he backed his trailer into the five lanes of Highway 167, causing the fatal accident.

11.

As a result of the collision, the 2009 Jeep Wrangler vehicle was crushed from the rear and Charles Douglas Adams sustained fatal injuries, including a deep cranial puncture wound.

12.

As a result of his injuries, Charles Douglas Adams suffered excruciating pain before he expired.

13.

The death of Charles Douglas Adams was proximately caused by the negligence of Defendant Bennett in the following particulars:

- (a) failure to maintain safe control of his semi-truck and trailer;
- (b) failure to keep a proper lookout for other vehicles using the five-lane roadway at highway speeds;
- (c) failure to yield the right-of-way to oncoming traffic;
- (d) failure to warn oncoming traffic that he intended to enter the roadway from an unmarked dirt road;
- (e) operating the semi-truck and trailer in violation of the rules of the road and standard operating procedures for commercial vehicles;
- (f) generally failing to use ordinary care for the safety of Plaintiff and other travelers on the highway.

14.

The accident was also proximately caused by the negligence of Defendant Melvin Sampson in the following particulars:

- (a) failure to maintain safe control of his vehicle;
- (b) failure to keep a proper lookout;
- (c) failure to yield the right of way to forward vehicles in his lane of travel;
- (d) generally failing to obey the rules of the road and to use ordinary care in the operation of his vehicle.

15.

Each of the above-referenced acts and omissions of Defendants together, and individually, constitute negligence and were the direct and proximate cause of the injuries and death resulting to Charles Douglas Adams.

16.

Defendant Southern United is a Mississippi limited liability company formed by Defendant Bennett which owned the semi-truck involved in this accident, although at the time of the accident the DOT Authority of Southern United was not in force.

17.

On information and belief, at the time of the accident, Bennett was operating the semi-truck as an agent or employee of Defendant Southern United. His negligence is imputable to that company under principles of Respondeat Superior.

18.

On information and belief, at the time of the accident, Bennett was engaged in a freight delivery on the Union Power Station plant premises as an agent or employee of

Defendant MAKADA. His negligence is imputable to that company under principles of Respondeat Superior.

19.

Plaintiff is entitled to recover damages for the pain and suffering, and the loss of life of Charles Douglas Adams as a result of the negligent conduct of Defendants, acting jointly and severally, in a sum which will exceed the minimum requirements for jurisdiction in federal court cases based on diversity.

20.

Plaintiff is further entitled to recover damages for the wrongful death of decedent suffered by the beneficiaries under the Arkansas Wrongful Death Statute in a sum which will exceed the minimum requirements for jurisdiction in federal court cases based on diversity.

21.

Plaintiff demands a trial by jury of all issues in this action.

WHEREFORE, Plaintiff, Marilyn Sue Grubbs, personal representative of the estate of Charles Douglas Adams, deceased, prays for judgment against Defendants Jeremy C. Bennett, MAKADA Transport, Inc., Southern United Transportation, LLC, and Melvin Sampson, jointly and severally, in such sums as will be necessary to compensate the decedent's estate for the pain, suffering, medical expenses and loss of life of Charles Douglas Adams and for the damages suffered by this beneficiaries under the Arkansas

Wrongful Death Statute, which sums shall each exceed the minimum requirements for jurisdiction in federal court based on diversity, and for all other just and proper relief to which Plaintiff may be entitled.

MARILYN SUE GRUBBS, PERSONAL REPRESENTATIVE
OF THE ESTATE OF CHARLES DOUGLAS ADAMS, DECEASED

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